

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-07

PKDC, LLC
Complainant,

v.

COSCO Shipping Lines Co., Ltd.
Respondent

**COMPLAINANT’S UNOPPOSED MOTION TO
AMEND THE SCHEDULING ORDER**

Pursuant to 46 C.F.R. Sections 502.69, 502.79, and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) submits this Unopposed Motion to Amend the Scheduling Order (“Motion”) to allow sufficient time to complete discovery and develop a full record in this matter. This is the first request to amend the Scheduling Order in this matter. As discussed below, good cause exists for the instant Motion.

I. Background

On July 29, 2025, the Presiding Officer entered a scheduling order (“Scheduling Order”) with the following deadlines relevant to this Motion:

Complete production of documents and electronically stored information (ESI) in response to initial requests for production of documents	October 8, 2025
Fact witness depositions may commence	October 8, 2025
Disclosure of Complainant's expert reports, if any	October 10, 2025
Last day parties may serve supplemental discovery requests	October 22, 2025
Complete depositions of fact witnesses	October 31 2025
Disclosure of Respondent's rebuttal expert reports, if any	November 10, 2025
Expert witness depositions may commence	November 12, 2025
Close of all discover	November 24, 2025
Complainant's brief, proposed findings of fact, and appendix	January 5, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	February 6, 2026
Complainant's reply and responses to proposed findings of fact	February 20, 2026

The parties have both exchanged their initial disclosures and both exchanged first sets of discovery (interrogatories and document requests), the Respondent has provided its initial responses, and Complainant is currently working on its responses. Further, on September 12, 2025, Complainant filed an unopposed motion to file an amended its complaint in this matter, which, if granted would serve to narrow the issues subject to this action. Complainant's motion is still pending. As explained below, because of the breadth of the discovery in the instant matter, additional time is necessary.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Complainant submits good cause exists in this instance.

a. Extension of Deadlines of Discovery and Briefing

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. 502.141(g)) which is sufficient time for many disputes. However, this matter involves a substantial number of invoices and an inquiry, requiring for the search and collection of voluminous discovery pertaining to each.

In similar matters, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent “favors the agency making its decision based on the most complete record available”). Indeed, the FMC has allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

III. Proposed Amended Schedule

Given the number of invoices at issue and the discovery necessary in the instant matter, Complainant requests a 45-day extension to the Scheduling Order to complete discovery as follows:

Complete production of documents and electronically stored information (ESI) in response to initial requests for production of documents	November 22, 2025
Fact witness depositions may commence	November 22, 2025
Disclosure of Complainant's expert reports, if any	November 24, 2025
Last day parties may serve supplemental discovery requests	December 6, 2025
Complete depositions of fact witnesses	December 15, 2025
Disclosure of Respondent's rebuttal expert reports, if any	December 25, 2025
Expert witness depositions may commence	December 27, 2025
Close of all discover	January 8, 2026
Complainant's brief, proposed findings of fact, and appendix	February 19, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	March 23, 2026
Complainant's reply and responses to proposed findings of fact	April 6, 2026

On September 29, 2025, counsel for Respondent, indicated that Respondent consents to the relief requested in this motion.

As good cause exists, this extension will not cause undue delay but allow for the creation of a complete record in this complex matter, and there is no opposition, Complainant respectfully requests that the Motion be granted.

WHEREFORE, the Complainant prays that its Unopposed Motion to Amend the Scheduling Order be granted.

SANDLER, TRAVIS & ROSENBERG, P.A.

Respectfully Submitted

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By: /S/ Jason Kenner
 Jason M. Kenner
 Counsel for Complaint PKDC

October 6, 2025

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of October 2025, the foregoing motion to amend was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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/s/ Jason M. Kenner